

4th City Council of Davao
63rd Regular Session
Series of 1970

Republic of the Philippines
CITY OF DAVAO
Office of the City Council
—oOo—

ORDINANCE NO. 447

"GARBAGE DISPOSAL AND COLLECTION ORDINANCE OF THE CITY OF DAVAO,
AND PRESCRIBING RATES OF PAYMENT THEREFOR :

Be it Ordained by the City Council, City of Davao, in regular
session assembled, the following ordinance:

SECTION 1. - This ordinance shall be known as the GARBAGE
DISPOSAL AND COLLECTION ORDINANCE OF THE CITY OF DAVAO AND PRES-
CRIBING RATES OF PAYMENT THEREFOR".

SEC. 2. - The Provisions of this ordinance shall be applicable
within the entire territory and jurisdiction of the City of Davao
and shall be enforced by the City Public Service Officer.

SEC. 3. - Area of collection and disposal: - The area of
collection and disposal of garbage and other refuse shall include
the poblacion of the City of Davao and those covered by the barrios,
sitios, subdivisions, settlements, or group of buildings, the
feasibility of operation of the service of which shall be deter-
mined by the Department of Public Services duly approved by the
City Council, through the recommendation of the City Mayor.

SEC. 4. - "Garbage defined: - The word "Garbage" as used
in this ordinance shall include the refuse of such animal or
vegetable matter or food supplies as were intended for human
food but have been neglected for such use, waste or used papers,
pasteboards, woven materials, straws, wood, hush, metal, cans,
broken glass or porcelain, loose or decayed materials, dirtlike
substance, sweepings, and cuttings, and waste products or materials
of manufacturing establishments and construction work, and any single
waste product or material not exceeding one (1) dump truck load.

SEC. 5. - Large or unusual quantities or rubbish, removal
and additional fee required: - That whenever there are large or

Ordinance No. 447, series of 1970, continued:

unusual quantities of rubbish or trade refuse to be removed from any private building, premises or place, the occupant thereof shall notify the City Public Service Officer at least twenty-four hours before removal is necessary, to collect such rubbish or trade refuse in order that proper transportation may be furnished for the same.

An additional special garbage collection fee shall be collected for large and unusual quantities of garbage and other refuse for one truckload in the amount of Thirty Pesos (P30.00) per truckload and for every additional truckload or a fraction thereof.

SEC. 6. - Special collection of refuse: Permit and additional fee, required: - Upon previous permits obtained from the Office of the City Mayor, daily collection of refuse from within the compound or premises of any industrial, commercial, business or other establishment may be allowed when it is inconvenient due to the nature of the refuse, for lack of sidewalk, or the narrowness, or the busy condition of the street, for the establishment to place their refuse receptacles at the sidewalk or at the street edge, subject, however, to the condition that such special collection service shall be allowed only when applied for, the party or parties concerned shall pay an additional monthly service fee of five (P5.00) Pesos, other than the fee schedule and that the refuse shall be contained in appropriate receptacles.

SEC. 7. - Disposal: - Time to place receptacles on sidewalk:- It shall be the duty of the occupant of every building, premises or place of business to have receptacles for garbage or rubbish placed on the outer edge of the sidewalk each day, or at the edge of the street if there is no sidewalk, at such time, not earlier than one (1) hour before collection as may be directed by the Department of Public Services, provided: that upon previous

Ordinance No. 447, series of 1970, continued:

permit secured from the Office of the City Mayor, industrial, commercial, or business establishments may place their receptacles outside their places of business earlier than 8:00 o'clock P.M. but not before 4:00 o'clock post meridian, when such industrial, commercial or business establishments can satisfactorily show to the City Mayor, that their closing hours are before 8:00 o'clock P.M. and that their refuse consist of rubbish only which includes waste or other used papers, pasteboards, woven materials, matting or metallic vessels, broken glasses or porcelain or the like, subject, however, to the condition that the receptacles to be used must be without leakage with appropriate cover and the design of which is approved by the City Public Service Officer, and that when the receptacles are outside, they shall be placed on the sidewalk in a manner that they will not in any way cause obstruction to pedestrians and the free flow of traffic and that no purifying, decaying or odorous matter shall be placed in the receptacles.

SEC. 8. - Disposal prohibition: - As soon as the garbage wagon or vehicles is loaded it must be driven at once to the specified place of disposal and on no account be allowed to stand in the vicinity of any human habitation, schoolhouse, or place of assembly. All such materials must be disposed of within twelve (12) hours after collection.

Human excreta shall not be disposed of through the garbage collection services of the Department of Public Services.

SEC. 9.- Fees: It shall be the duty of all building owners or occupants therein within the area of collection to pay an annual garbage fee according to the following schedule.

<u>Business, trade or occupation</u>	<u>Annual Fee</u>
1. Candle or soap factory:	
a. With machinery	P 18.00
b. Without machinery	P 12.00

2

Ordinance No. 447, series of 1970, continued:Business, trade or occupation:Annual Fee

2. Manufacture of paint, pasters, ink, dyes, and other similar products:		
a. With machinery	P	18.00
b. Without machinery	P	12.00
3. Manufacture of coconut oil:		
a. With five (5) expellers or more	P	18.00
b. With less than five (5) expellers	P	12.00
c. Manufacture of other kinds of oil	P	9.00
4. Manufacture of lard or boiling fat, butter, sauce, sausages, hot dog, baloney, and other kinds of similar products:		
a. With machinery	P	18.00
b. Without machinery	P	12.00
5. Manufacture of coffee or chocolate, candies and other similar products:		
a. With machinery	P	18.00
b. Without machinery	P	12.00
6. Ice Cream or ice drop:		
a. With machinery	P	12.00
b. Without machinery	P	6.00
7. Dry or curing fish:	P	18.00
8. Tanneries	P	18.00
9. Ice Factory	P	18.00
10. Assaying Laboratories	P	9.00
11. Manufacture of batteries for motor vehicles, charging and re-charging batteries	P	9.00
12. Carpentry shops, manufacture of wooden boxes:		
a. With machinery	P	18.00
b. Without machinery	P	9.00
13. Manufacture of and repair of shoes:		
a. With machinery	P	9.00
b. Without machinery	P	4.00
14. Manufacture of mattresses:		
a. With bed factory connection	P	18.00
b. Without bed factory connection	P	9.00
15. Manufacture of bed, all kinds:		
a. With machinery	P	18.00
b. Without machinery	P	9.00
16. Manufacture and repair of vehicles drawn by animals:		
a. With machinery	P	9.00
b. Without machinery	P	4.00
17. Establishment for the construction and repair of bodies of motor vehicles:		
a. With machinery	P	9.00
b. Without machinery	P	4.00
18. Establishment for the repair of motor vehicles:		
a. With an area of more than 1,000 sq. m.	P	12.00
b. With an area of more than 500 sq.m. but not exceeding 1,000 sq. m.	P	19.00
c. With an area of 500 sq. m. or less	P	6.00
19. Blacksmith shops:		
a. With machinery apparatus & forges	P	18.00
b. Without machinery but with forges	P	9.00
20. Machine shop establishment for manufacturing or repairing parts of mechanical apparatus or engine or manufacturing any kind of article made of brass:		
a. With more than 10 lathes	P	18.00
b. With lathes not exceeding 10	P	15.00
c. With lathes not exceeding 6	P	12.00
d. With lathes not exceeding 3	P	9.00
e. With lathes not exceeding 2	P	6.00

Ordinance No. 447, series of 1970, continued:

<u>Business, trade or occupation</u>	<u>Annual Fee</u>
f. With one lathe	P 4.00
g. Without lathe	P 3.00
21. Repair shop for pianos, auto pianos, radio, phonographs, typewriters, mimeographs, and other similar apparatus:	
a. With machinery	P 9.00
b. Without machinery	P 4.00
22. Foundries of iron or bronze:	
a. Found 5 or more tons a day	P 18.00
b. Founding less than five (5) tons a day	P 9.00
23. Welding shops:	
a. With machinery move by electricity	P 9.00
b. With machinery move by hand or manpower	P 4.00
24. Lithographers or engravers:	
a. With machinery	P 9.00
a. Without machinery	P 4.00
25. Tinsmith:	
a. With machinery	P 6.00
b. Without machinery	P 3.00
26. Photo engravers:	P 9.00
27. Photo studios or establishments:	
a. With one gallery or more with one or more photo camera and with photographic enlargement	P 9.00
b. With one gallery and one photo camera	P 4.00
28. General repair of articles, iron, brass, etc.:	
a. With machinery	P 9.00
b. Without machinery	P 4.00
29. Restaurants, panciterias, with cafe and cafeterias, carinderias, or any other public eating places:	
a. Restaurants or panciterias with 50 seating capacity or more	P 36.00
b. Restaurants or panciterias with less than 50 seating capacity	P 27.00
c. Cafes and cafeterias	P 18.00
d. Cafeterias with 20 or more seating capacity	P 9.00
e. Carinderias with less than 20 seating capacity	P 4.00
30. Refreshment parlors:	
a. With 20 or more seating capacity	P 9.00
b. With less than 20 seating capacity	P 4.00
31. Hotels or lodging houses:	
a. With 20 or more rooms	P 36.00
b. With less than 20 rooms	P 18.00
32. Sari-sari Stores:	
a. Along streets	P 9.00
b. Those located in the interior	P 3.00
33. Manufacture of aerated water or soft drinks:	
a. With over 4 corking machines	P 36.00
b. With 3 to 4 corking machines	P 27.00
c. With 1 to 2 corking machines	P 18.00
34. Storage of alcohol:	P 36.00
35. Barber shops:	
a. Those having 10 or more mechanical Chairs.	P 9.00
b. Those having 5 to 9 mechanical chairs	P 3.00
c. Those having less than 5 mech. chairs	P 2.00
d. Those having one (1) ordinary chairs and for location	P 2.00

Ordinance No. 447, series of 1970, continued:Business, trade or occupation:Annual Fee

e. For each ordinary chair	P 1.00
36. Hardware Stores:	
a. Those located in the following streets, Magallanes St., San Pedro St., S.M. Recto Ave., B. Magaysay Ave., Tomas Claudio St., Monteverde St., Laurel Ave., Carpenter St., Alvarez St., and Pangoy St.:	18.00
b. Those located in the following streets: Legaspi St., Anda St., P. Reyes, St., Bolton St., Rizal St., Bonifacio St., Generoso St., Lizada St., C. Blvd. Jacinto St., Lapu-Lapu Gempesaw St.	P 12.00
c. Other places not enumerated in a & b	P 9.00
37. Billiard and pool Halls:	
a. With 2 or more tables	P 4.00
b. With 1 table	P 3.00
38. Boarding Houses:	
a. For 50 boarders or more	P 18.00
b. For 20 but less than 50 boarders	P 9.00
c. Less than 20 boarders	P 4.00
39. Manufacture of boxes out of second hand lumber or materials:	
a. With machinery	P 36.00
b. Without machinery	P 18.00
40. Manufacture of cigar boxes and other similar boxes:	
a. Cigar boxes and other similar boxes	P 36.00
b. Boxes made of paper, cardboards, bamboos of similar materials	P 18.00
41. Bowling alleys:	
a. Over 70 feet long per alley	P 4.00
b. From 43 to 70 feet long alley	P 3.00
c. Shorter than 43 feet long	P 3.00
42. Manufacture of bricks, tiles, and other similar products:	
a. With machinery for each press	P 18.00
b. Without machinery for each press	P 9.00
43. Night Clubs:	
a. Those conducted with hotel, lodging houses with regular restaurants, cafe, or refresh- ment parlors	P 36.00
b. Night club only	P 18.00
44. Cold Storage:	
a. With a total capacity of 50 cu. m. or more capacity	P 36.00
b. With a total capacity less than 50 cu. m. capacity but not less than 35 cu. m.	P 27.00
c. With a total capacity of less than 35 cu. m. but less than 5 cu. m.	P 18.00
d. With a total capacity of less than 5 cu. m.	P 9.00
e. With a total capacity of less than 5 cu. m.	P 5.00
f. Refrigerating cases with 4 cu. m. capacity or more	P 3.00
45. Motor (storage):	
a. 10 gallons but not exceeding 10 ⁴ gals.	P 6.00
b. Over 1,000 gallons	P 9.00
46. Gasoline, petroleum or other similar products:	
a. 10 to 200 gallons	P 3.00
b. 201 to 1,000 gallons	P 6.00
c. 1,001 to 5,000 gallons	P 19.00
d. 5,001 to 50,000 gallons	P 12.00
e. Over 50,000 gallons	P 15.00

Ordinance No. 447, series of 1970, continued:Business, trade or occupation:Annual Fee

47. Theaters of cinematographies:		
a. First class	P	36.00
b. Second class	P	27.00
c. Third class	P	18.00
48. Distillery or rectifier	P	18.00
49. Cinematograph film storage:		
a. 2,000 kilos or more	P	18.00
b. 500 kilos but not more than 2,000 kls.	P	12.00
c. Less than 500 kilos	P	9.00
50. Other combustible materials storage:		
a. Over 5,000 kilos	P	36.00
b. Tar, 3,000 kls. to 5,000 kls.	P	27.00
c. Tar, 1,000 kls. but exceeding more than 2,999 kilos	P	18.00
d. Less than 1,000 kilos	P	12.00
e. Resin over 5,000 kilos	P	18.00
f. Resin over 3,000 kilos to 5,000	P	12.00
g. Resin 1,000 kilos to 2,999 kls.	P	9.00
h. Less than 1,000 kilos	P	6.00
51. Second hand dealers:		
a. Automobile spare parts ;	P	18.00
b. Furniture and household goods	P	9.00
52. Grocery Stores:		
a. Those located in the following streets: Magallanes St., San Pedro St., C.A. Recto St., R. Magsaysay Ave., Tomas Claudio St., Monteverde St., Laurel Ave., Alvarez St., and Bangoy St.,	P	36.00
b. Those located in the following streets: Legaspi St., Anda St., P. Reyes St., Bolton St., Carpenter st. Rizal St., Bonifacio St., Guerrero St., Lizada St., Quezon Blvd. St., Sta. Ana Ave., Villa Abrille, Suazo St., and Compesaw St.	P	27.00
c. Other places not mentioned in a & b	P	18.00
53. Dealers in automobiles, motor cars, trucks of all kinds, jeep or jetneys, other kinds of Motor vehicle or accessories and spare parts:		
a. Dealers in new motor vehicles or accessories	P	18.00
b. Dealers in second hand motor vehicles	P	9.00
54. Establishment for repair of motor vehicles:		
a. Those having a space of more than 700 sq. m.	P	6.00
b. Those having a space of 300 sq. m. but not exceeding 700 sq. m.	P	6.00
c. Those having 200 sq. m. space but not exceeding 299 sq. m.	P	3.00
d. Those having space of less than 200 sq.m.	P	2.00
55. Bakeries:		
a. Those having four (4) ovens or more	P	18.00
b. Those having 2 or 3 ovens	P	12.00
c. Those having 1 oven	P	9.00
56. Clubs:		
a. Furnishing lodging, food and alcoholic or intoxicating drinks to their members	P	18.00
b. Furnishing alcoholic or intoxicating drinks but no food and lodging	P	12.00
57. Lumber Yards:		
Class A ! without machinery:		
a. 1 with a yard for deposit of lumber having space of more than 1,500 sq. m.	P	36.00

Ordinance No. 447, series of 1970, continued:

<u>Business, trade or occupation (Cont'd)</u>	<u>Annual Fee</u>
a - 2 with a yard for deposit of lumber having a space of 1,000 sq. m. but not more than 1,500 sq. m.	27.00
a - 3 with a yard for the deposit of lumber having a space of 500 sq. m. but less than 1,000 sq. m.	18.00
a - 4 with a yard for the deposit of lumber having a space of less than 500 sq. m.	12.00
a.- 5 without yard, but with space to keep already sawed lumber and provided with an office for accepting order for lumber only	9.00
Class B + Lumber Yard (sawmill) with machinery:	
b - 1 over 500 horse power	36.00
b - 2 from 201 to 500 horse power	27.00
b - 3 from 101 to 200 horse power	18.00
b - 4 from 26 to 100 horse power	19.00
b - 5 from 15 to 25 horse power	9.00
b - 6 from 1 to 14 horse power	6.00
58. Undertakers:	
a. With embalming establishments and depositin corpses	9.00
b. Rendering funeral services only	6.00
59. Pawnbrokers:	12.00
60. Manufacture or sale of rattan chairs, etc.:	
a. With machinery	18.00
b. Without machinery	9.00
61. Manufacture of mirrors and art glasswares:	
a. With machinery	36.00
b. Without machinery	18.00
62. Printing shops	18.00
63. Manufacture of bagoong	9.00
64. Laundry establishments using machines for washing clothes	9.00
65. Manufacture of eye glasses:	
a. With machinery	6.00
b. Without machinery	3.00
66. Manufacture of Floor wax	9.00
67. Manufacture of Miki, bijon, misua, and other similar products:	36.00
68. Warehouses:	
a. With an area over 1,000 sq. m.	18.00
b. With an area from 500 to 1,000 sq. m.	12.00
c. With an area less than 500 sq. m.	9.00
69. Beauty parlors or shops:	
a. Having 12 or more operators	9.00
b. Having 5 to 11 operators	6.00
c. Having less than 5 operators	3.00
70. All other businesses and trades not enumerated in the foregoing section	12.00

All other business establishments not covered by the provisions of Section 9 shall pay the garbage fee under the same or similar categories mentioned in said section.

SEC. 10. - Entities, firms or establishments who have already paid any specific garbage fee mentioned in Section 9 shall be exempted from the payment of any other garbage fee if the nature

2,629

Ordinance No. 447, series of 1970, continued:

of the business is already covered by any of the items enumerated in Section 9.

SEC. 11. - Mode of Payment: - The garbage fee shall be paid to the City Treasurer annually and shall be payable within the first twenty (20) days of January, every year, otherwise, surcharge of fifty per centum thereof shall be imposed, provided, however, the new applicants of business permits shall pay only proportionate garbage fee corresponding to the period when they established their business in Davao City, provided, further that those already granted business permit upon the effectivity of this ordinance shall pay only the proportionate fee corresponding the last quarter of 1970.

No license or permit to do business in Davao City, or any renewal thereof may be issued to any person, firm or corporation unless the garbage fee mentioned in Section 9 is paid.

SEC. 12. - This Ordinance shall take effect on October 1, 1970.

Ramon A. Morada
RAMON A. MORADA
City Councilor
Acting Presiding Officer

ATTESTED:

Flore J. Tungpalan
FLORE J. TUNGPALAN
Acting Secretary of the Council
cmn:esa

APPROVED: _____, 1970

ELIAS B. LOPEZ
Mayor, City of Davao

ATTESTED:

ANTONIO B. PICHON, JR.
Acting City Secretary